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JUNQIAO XIAO, State Bar No.: 341670
HYO JIN JULIA JUNG, State Bar No.: 316090
MICHAEL D. KAHN, State Bar No.: 236898
Midland Credit Management, Inc.
350 CAMINO DE LA REINA, SUITE 100
SAN DIEGO, CA 92108
Telephone: (866) 300-8750
Facsimile: (858) 309-1588
CaliforniaLegal@mcmcg.com
CA Debt Collector License Number Pending
Attorneys for Plaintiff

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Superior Court of California,
County of Los Angeles
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David W. Slayton,
Executive Officer/Clerk of Court,
By L. Lacanlale, Deputy Clerk

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF LOS ANGELES**

CHATSWORTH COURTHOUSE NORTH VALLEY DISTRICT

MIDLAND CREDIT MANAGEMENT, INC.

Plaintiff,

vs.

JESSICA PENA;
and DOES 1 through 10, inclusive
Defendant.

Case No. **24CHLC00783**

COMPLAINT FOR:

(1) Account Stated

PRAYER AMT: \$2,961.16
LIMITED

MIDLAND CREDIT MANAGEMENT, INC., ("Plaintiff"), by counsel, sues JESSICA PENA, ("Defendant")
under Account Stated and in support thereof states:

1. Plaintiff is authorized to do business in CALIFORNIA, with its principal place of business at 350 CAMINO DE LA REINA SUITE 100 SAN DIEGO CA 92108. Plaintiff owns portfolios of consumer receivables, which it attempts to collect. Plaintiff strives to treat its consumers, such as Defendant, with respect, compassion and integrity, hoping to provide mutually-beneficial opportunities for consumers to repay their debts and attain financial recovery.
2. Defendant is a resident of LOS ANGELES County, State of California and is subject to this Court's jurisdiction.
3. Plaintiff is unaware of the true names and capacities of Defendants sued by the fictitious names DOES 1 through 10. Plaintiff will ask leave of court to amend this complaint as and when the true names and capacities of Defendants named herein as DOES 1 through 10 have been ascertained.
Pursuant to California Civil Code ("CA CIVIL") §1788.58(a)(1)-(9), Plaintiff alleges:
4. Plaintiff is a debt buyer as defined by CA CIVIL §1788.50(a).

- 1 5. Defendant established a credit account (the "Account") with CITIBANK, N.A.. The
2 amount due is the result of transactions that occurred on the Account. Defendant was
3 provided statements evidencing Defendant's use of the Account and the balance due.
4 Defendant failed to make the required payments and subsequently defaulted on the
5 Account on June 08, 2021. Thereafter, Plaintiff was assigned all rights, title, and interest
6 in the Account.
- 7 6. Plaintiff is the sole owner of the debt. Attached as Exhibit A is a true and correct copy of
8 the Bill of Sale from CITIBANK, N.A., to Plaintiff. The Account was purchased by
9 Plaintiff on February 17, 2022.
- 10 7. The Account balance at the time of charge-off was \$3,961.16. Plaintiff alleges that the
11 date of default is June 08, 2021 and the date of the last payment was September 06,
12 2022.
- 13 8. The name of the charge-off creditor at the time of charge-off is CITIBANK, N.A.. The
14 address utilized by CITIBANK, N.A. at the time of charge-off was 5800 SOUTH
15 CORPORATE PLACE SIOUX FALLS, SD 57108. At the time of charge off, the
16 account number associated with the debt was XXXXXXXX-XX-4834.
- 17 9. The name of the debtor as it appeared in the records of CITIBANK, N.A. is JESSICA
18 PENA and the last known address as it appeared in the records of CITIBANK, N.A. is
19 12983 SUNBURST ST PACOIMA CA 91331.
- 20 10. The name and address of all post charge-off purchasers of the debt are as follows:
- | Name | Address |
|------------------------------------|--|
| MIDLAND CREDIT MANAGEMENT,
INC. | 350 CAMINO DE LA REINA SUITE 100 SAN
DIEGO CA 92108 |
- 21 11. Plaintiff has complied with the provisions of CA CIVIL §1788.52. Plaintiff informed
22 Defendant of the assignment of the Account.
- 23 12. Pursuant to CA CIVIL §1788.58(b), attached as Exhibit B is a true and correct copy of a
24 monthly statement recording a purchase transaction, payment, or balance transfer while
25 the Account was active as required by CA CIVIL §1788.52(b).
- 26 13. Attached as Exhibit C is a true and correct copy of a billing statement that was mailed to
27 Defendant stating the balance due on the Account at or around the time of charge-off.
28

- 1 14. Plaintiff acquired all right, title, and interest to the Account. To the extent that Plaintiff
2 acts in its capacity as successor-in-interest to the original creditor or its assigns,
3 references herein to Plaintiff may include Plaintiff's predecessor-in-interest.
- 4 15. Plaintiff has attempted to contact Defendant through several means in an effort to resolve
5 the Account, but has been unsuccessful. Defendant has not repaid this debt. Plaintiff
6 works with consumers like Defendant to find mutually acceptable solutions, often
7 offering discounts, hardship plans, and a variety of payment options. The majority of
8 Plaintiff's consumers ignore calls or letters, and some simply refuse to repay their
9 obligations. When this happens, Plaintiff must decide whether to pursue collection
10 through legal channels, including litigation such as the present action against Defendant.
11 Nonetheless, Plaintiff remains interested in discovering a mutually beneficial solution
12 through voluntary payments, if possible, in this case.
- 13 16. Before commencement of this action, Plaintiff informed Defendant in writing, that it
14 intended to file this action and that this action could result in a judgment against
15 Defendant that would include court costs allowed by California Code of Civil Procedure
16 § 1033(b)(2).

17 **FIRST CAUSE OF ACTION**

18 **ACCOUNT STATED**

- 19 17. Plaintiff realleges and incorporates by reference the foregoing paragraphs.
- 20 18. An account was stated in writing between Defendant and CITIBANK, N.A.. Defendant
21 opened and derived benefit from the Account. By using the Account, Defendant
22 expressly or impliedly promised to repay CITIBANK, N.A.. Within the last four years,
23 Defendant became indebted on the Account.
- 24 19. On the Account, a balance of \$3,961.16 was stated to be due to CITIBANK, N.A. from
25 Defendant. Plaintiff has no record of Defendant objecting to the balance due.
- 26 20. Before the commencement of this action, Plaintiff was assigned the Account and
27 indebtedness. Plaintiff is now the sole owner of the Account.
- 28 21. Plaintiff has made a demand on Defendant for repayment of the Account, but Defendant
has failed to pay the balance due.
22. The current balance presently due and owing is \$2,961.16 which includes payments, set-
offs, credits or allowances, if any, at or after charge-off.

1
2 **WHEREFORE**, Plaintiff requests judgment against Defendant for \$2,961.16, costs of this action
3 and post judgment interest at the statutory rate. Plaintiff waives any claim for pre- judgment interest and
4 attorney's fees.
5

6
7 Dated: December 20, 2023

MIDLAND CREDIT MANAGEMENT, INC.

8
9 

H. Julia Jung, Esq.

10 By:

11 ☐ ROBERT K. HANNA / ☐ JUNQIAO XIAO
12 ☐ MICHAEL D. KAHN / ☒ HYO JIN JULIA JUNG
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EXHIBIT A

BILL OF SALE AND ASSIGNMENT

THIS BILL OF SALE AND ASSIGNMENT dated February 17, 2022, is by Citibank, N.A., a national banking association organized under the laws of the United States, located at 5800 South Corporate Place, Sioux Falls, SD 57108 ("Bank"), to Midland Credit Management, Inc., a corporation organized under the laws of Kansas, with its headquarters/principal place of business at 350 Camino De La Reina, Suite 100, San Diego, CA 92108 ("Buyer").

For value received and subject to the terms and conditions of the Master Purchase and Sale Agreement dated April 30, 2021 between Bank, Department Stores National Bank, and Buyer (the "Master Purchase Agreement"), and that certain Addendum No. 5 dated August 23, 2021, between Bank and Buyer (the "Addendum", and together with the Master Purchase Agreement, the "Agreement"), the Bank does hereby transfer, sell, assign, convey, grant, bargain, set over and deliver to Buyer, and to Buyer's successors and assigns, the Accounts summarized on the Asset Schedule attached hereto as Exhibit A and included in the Final Electronic File. Capitalized terms not defined herein shall have the definition ascribed in the Agreement.

With respect to information for the Accounts summarized on the Asset Schedule and included in the Final Electronic File, the Bank represents and warrants to Buyer that (i) the Account information constitutes the Bank's own business records and accurately reflects in all material respects the information in the Bank's database; (ii) the Account information was kept in the regular course of business; (iii) the Account information was made at or near the time by, or from information transmitted by, a person with knowledge of the data entered into and maintained in the Account's database; and (iv) it is the regular practice of the Bank's business to maintain and compile such data.

CITIBANK, N.A.

MIDLAND CREDIT MANAGEMENT, INC.

By: 
(Signature)

By: 
(Signature)

Name: Terri Bergman

Name: Danielle Wohlfahrt

Title: Authorized Party

Title: VP of BD

Exhibit A to Bill of Sale

The individual Accounts transferred are described in the final electronic file named Encore-Brands-Costco-Early-Out-Flow-Lot2-0222, and delivered by the Bank to Buyer, the same deemed attached hereto by this reference.

Lot	Sale ID	# of Accounts	Sale Balance	Cut-Off Date	Purchase Price Percentage
Brands and Costco Early Out Flow Lot 2	020922MC1MU4EM			2/9/2022	

AFFIDAVIT OF SALE OF ACCOUNT

State of Missouri
County of Platte

Terri Bergman, being duly sworn, deposes and says:

I am an authorized employee of Citibank, N.A. ("CBNA") located at 5800 South Corporate Place, Sioux Falls, SD 57108 am authorized to make the statements and representations herein and I am over 18 years of age. In this position, I have access to the creditor's books and records and am aware of the process of the sale of accounts and electronic storage of business records.

On or about February 17, 2022, CBNA sold a pool of charged-off accounts (the Accounts) by a Master Purchase and Sale Agreement dated April 30, 2021, Bill of Sale, and Addendum No. 5 dated August 23, 2021 to Midland Credit Management, Inc. As part of the sale of the Accounts, certain electronic records were transferred on individual accounts to the debt buyer. These records were kept in the ordinary course of business of creditor.

I am not aware of any errors in the information provided about the Accounts. The above statements are true to the best of my knowledge.

Signed this 22 day of February, 2022


Terri Bergman

State of Missouri)
) ss
County of Platte)

On this 22 day of Feb, 2022, before me, the undersigned notary, personally appeared Terri Bergman, personally known to me to be the person who signed the preceding or attached document in my presence and who swore or affirmed to me that the contents of the document are truthful and accurate to the best of his/her knowledge and belief.



[SEAL]

G J KARR
Notary Public-Notary Seal
State of Missouri, Clay County
Commission# 18876434
My Commission Expires Aug 15, 2022

CERTIFICATE OF CONFORMITY

**STATE OF MISSOURI
CITY OF KANSAS CITY**

The undersigned does hereby certify that he/she is an attorney at law duly admitted to practice in the State of Missouri and is a resident of PLATTE County, in the State of MISSOURI; that he/she is a person duly qualified to make this certificate of conformity pursuant to the laws of the State of Missouri; that the foregoing affidavit by Terri Bergman named in the foregoing instrument taken before GJ Karr, a Notary in the State of Missouri, was taken in the manner prescribed by such laws of the State of Missouri, being the State in which it was taken; and that it duly conforms with such laws and is in all respects valid and effective in such state.

2-22-22
Date

J. J. Law mo#51227
Attorney at Law

Field	Field Data
Account Number	██████████4834
First Name	JESSICA
Last Name	PENA
SSN	XXX-XX-7674
Date of Birth	██████████
Address 1	12983 SUNBURST ST
City	PACOIMA
State	CA
Zip	91331
Home Phone	8186751226
Open Date	03/01/2017
Last Purchase Date	04/16/2021
Last Payment Date	10/07/2021
Last Payment Amount	\$100.00
Sale Amount	\$3,961.16
Charge Off Date	01/11/2022
Charge off Balance	\$3,961.16
Post Charge Off Interest	\$0.00
Post Charge off Fee	\$0.00
Post Charge off Payments	\$0.00
Post Charge off Payments and Credits	\$0.00
Post Charge off Credits	\$0.00
Affinity	AADVANTAGE GOLD
Alternate Account #1	██████████2545
Alternate Account #2	██████████8598
Alternate Account #3	██████████3751

Account information provided by Citibank, N.A. pursuant to the Bill of Sale/Assignment of Accounts transferred on or about 02/17/2022 in connection with the sale of accounts from Citibank, N.A. to Midland Credit Management, Inc.

Encore-Brands-Costco-Early-Out-Flow-Lot2-0222
020922MC1MU4EM

EXHIBIT B

JESSICA PENA

Member Since 2017 Account number ending in: 4834

Billing Period: 09/10/21-10/11/21

www.citicards.com

Customer Service 1-800-866-9900

Speech/hearing impaired: 711

BOX 6500 SIOUX FALLS, SD 57117

OCTOBER STATEMENT

Minimum payment due: \$857.28
New balance as of 10/11/21: \$3,669.73
Payment due date: 11/07/21

See the last page of this statement for important information about how to avoid paying interest on purchases.

Late Payment Warning: If we do not receive your minimum payment by the date listed above, you may have to pay a late fee of up to \$40 and your APRs may be increased up to the Penalty APR of 29.99%.

Minimum Payment Warning: If you make only the minimum payment each period, you will pay more in interest and it will take you longer to pay off your balance. For example:

If you make no additional charges using this card and each month you pay...	You will pay off the balance shown on this statement in about...	And you will end up paying an estimated total of...
Only the minimum payment	12 year(s)	\$7,406

For information about credit counseling services, call 1-877-337-8188.

Your account is past due \$439.65 and overlimit \$269.73. Please pay at least the minimum payment due, which includes a past due amount and an overlimit amount.

Account Summary

Previous balance	\$3,658.83
Payments	-\$100.00
Credits	-\$0.00
Purchases	+\$0.00
Cash advances	+\$0.00
Fees	+\$40.00
Interest	+\$70.90

New balance \$3,669.73**Credit Limit**

Revolving Credit limit \$3,400

Includes \$800 cash advance limit

**AMERICAN AIRLINES
AADVANTAGE® MILES**

AAdvantage® Miles
 Earned this period:

0

» See page 3 for more information
 about your rewards

For Payments, send check to: CITI CARDS, PO BOX 78045, Phoenix, AZ, 85062-8045

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 with the Citi Mobile® App and Citi® Online



To download:
 Text 'App15' to MyCiti (692484)
 or go to your device's app store.
 Or visit www.citicards.com

Minimum payment due \$857.28
New balance \$3,669.73
Payment due date 11/07/21

Amount enclosed:

Account number ending in 4834

Please make check payable to CITI CARDS.

000000 WE 00 A 0

JESSICA PENA
 12983 SUNBURST ST
 PACOIMA CA 91331-3344

CITI CARDS
 PO BOX 78045
 Phoenix, AZ 85062-8045

JESSICA PENA

Account Summary

Trans. date	Post date	Description	Amount
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Payments, Credits and Adjustments

10/07		ONLINE PAYMENT, THANK YOU	-\$100.00
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Fees charged

Date	Description	Amount
10/11	LATE FEE - SEP PAYMENT PAST DUE	\$40.00

Total fees charged in this billing period **\$40.00****Interest charged**

Date	Description	Amount
10/11	INTEREST CHARGED TO PUR PR-09/30/21.	\$68.52
10/11	INTEREST CHARGED TO PUR PR-09/30/21.	\$2.38

Total interest charged in this billing period **\$70.90****2021 totals year-to-date**

Total fees charged in 2021	\$290.00
Total interest charged in 2021	\$626.71

Interest charge calculationDays in billing cycle: **32**Your **Annual Percentage Rate (APR)** is the annual interest rate on your account.

Balance type	Annual percentage rate (APR)	Balance subject to interest rate	Interest charge
PURCHASES			
Standard Purch	21.99% (V)	\$0.00 (D)	\$0.00
Pur Pr 063021	21.99% (V)	\$3,554.16 (D)	\$68.52
Pur Pr 093021	21.99% (V)	\$123.40 (D)	\$2.38
ADVANCES			
Standard Adv	25.24% (V)	\$0.00 (D)	\$0.00

Your Annual Percentage Rate (APR) is the annual interest rate on your account. APRs followed by (V) may vary. Balances followed by (D) are determined by the daily balance method (including current transactions).

Account messages

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EXHIBIT C

JESSICA PENA

Member Since 2017 Account number ending in: 4834

Billing Period: 12/10/21-01/11/22

www.citicards.com

Customer Service 1-800-846-8444

Speech/hearing impaired: 711

BOX 6500 SIOUX FALLS, SD 57117

JANUARY STATEMENT

Minimum payment due: \$3,961.16
New balance as of 01/11/22: \$3,961.16
Payment due date: 01/11/22

See the last page of this statement for important information about how to avoid paying interest on purchases.

Late Payment Warning: If we do not receive your minimum payment by the date listed above, you may have to pay a late fee of up to \$40 and your APRs may be increased up to the Penalty APR of 29.99%.

Minimum Payment Warning: If you make only the minimum payment each period, you will pay more in interest and it will take you longer to pay off your balance. For example:

If you make no additional charges using this card and each month you pay...	You will pay off the balance shown on this statement in about...	And you will end up paying an estimated total of...
Only the minimum payment	1 month(s)	\$3,961

For information about credit counseling services, call 1-877-337-8188.

Account Summary

Previous balance \$3,883.21
 Payments -\$0.00
 Credits -\$0.00
 Purchases +\$0.00
 Cash advances +\$0.00
 Fees +\$0.00
 Interest +\$77.95

New balance \$3,961.16

Credit Limit

Revolving Credit limit \$3,400
 Includes \$800 cash advance limit

For Payments, send check to: CITI CARDS, PO BOX 78045, Phoenix, AZ, 85062-8045



Pay online www.citicards.com



Pay by phone 1 800 846 8444



Pay by mail Use this coupon

- Enclose a valid check or money order payable to CITI CARDS. No cash or foreign currency.
- Write the last four digits of your account number on your check.

Minimum payment due \$3,961.16
New balance \$3,961.16
Payment due date 01/11/22

Amount enclosed:

Account number ending in 4834

Please make check payable to CITI CARDS.

000000 WE 34 A 0

JESSICA PENA
 12983 SUNBURST ST
 PACOIMA CA 91331

CITI CARDS
 PO BOX 78045
 Phoenix, AZ 85062-8045

JESSICA PENA

Account Summary

Trans. date	Post date	Description	Amount
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Fees charged

Total fees charged in this billing period	\$0.00
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Interest charged

Date	Description	Amount
01/11	INTEREST CHARGED TO STANDARD PURCH	\$2.45
01/11	INTEREST CHARGED TO PUR PR-06/30/21.	\$72.91
01/11	INTEREST CHARGED TO PUR PR-09/30/21.	\$2.59

Total interest charged in this billing period	\$77.95
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2022 totals year-to-date

Total fees charged in 2022	\$0.00
Total interest charged in 2022	\$77.95

Interest charge calculationDays in billing cycle: **33**Your **Annual Percentage Rate (APR)** is the annual interest rate on your account.

Balance type	Annual percentage rate (APR)	Balance subject to interest rate	Interest charge
PURCHASES			
Standard Purch	21.99% (V)	\$123.36 (D)	\$2.45
Pur Pr 063021	21.99% (V)	\$3,667.13 (D)	\$72.91
Pur Pr 093021	21.99% (V)	\$130.39 (D)	\$2.59
ADVANCES			
Standard Adv	25.24% (V)	\$0.00 (D)	\$0.00

Your Annual Percentage Rate (APR) is the annual interest rate on your account. APRs followed by (V) may vary. Balances followed by (D) are determined by the daily balance method (including current transactions).

Account messages

Minimum Payment Due includes past due amounts. Your account may be with a collection vendor and when you call our number, you may be referred to the vendor. You may reach us at the toll free number shown above Monday-Thursday 8am to 6 pm or Friday 8am to 5pm, Central Time. 1-800-846-8444, TTY 1-855-371-0353.

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